

The Claremont City Council held a meeting on Wednesday, September 14, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:00 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

John P. Bohenko, Interim City Manager

Interview For Open Council Seat

Mayor Girard, and City Council interviewed three candidates for the open Council seat. Mr. Batchelder, Mr. Demars, and Mr. Savoie.

Mayor Girard asked for each Councilor to name their vote during roll call.

Roll Call:

Contois - Batchelder
O’Hearne - Batchelder
Stone - Demars
Matteau - Demars
Koloski - Batchelder
Limoges - Demars
Mooshian - Batchelder
Girard - Demars
Motion carried 4-4

After discussing the tie-vote Mayor Girard called for a five-minute break. Once the meeting reconvened another roll was called for votes:

Roll Call:

Contois - Batchelder

O'Hearne - Batchelder
Stone - Demars
Matteau - Demars
Koloski - Batchelder
Limoges - Demars
Mooshian - Batchelder
Girard - Demars
Motion carried 4-4

Assistant Mayor Matteau suggested putting names in a hat to move forward. Councilor O'Hearne noted that was not the way it's been done in the past and the Council shouldn't change procedures.

Another roll call was made:

Roll Call:
Contois - Batchelder
O'Hearne - Batchelder
Stone - Demars
Matteau - Demars
Koloski - Batchelder
Limoges - Demars
Mooshian - Batchelder
Girard - Batchelder
Motion carried 5-3, in Favor of Mr. Batchelder

Ms. Melcher, City Clerk, swore in Mr. Batchelder and then Mr. Batchelder joined the rest of Council at the table.

AGENDA CHANGES
None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne to accept the minutes of the August 24, 2022, City Council meeting.

Voice vote:
Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes

Batchelder - abstain

Mooshian - yes

Girard - yes

Motion carried 8-0, 1 Abstain (Batchelder)

MAYOR'S NOTES

Mayor Girard noted the Claremont Kiwanis Club has their annual 5K and Brewfest at the Visitor Center this Saturday. The Claremont Soup Kitchen, on Saturday September 24th, will be holding a breakfast fundraiser.

CITY MANAGER'S REPORT

Mr. Bohenko started by reporting the open house on October 12th for Claremont NH Municipal Airport. All are invited from 11:00 a.m. to 1:00 p.m. with a 12:00 p.m. ribbon cutting.

Mr. Bohenko noted the Enduro bike race held last weekend had very positive feedback. Mr. Bohenko also stated there is a New Parks and Recreation Director, Nick Lawrence that will be starting on Monday September 19th.

APPOINTMENT TO BOARDS AND COMMITTEES

Frances J. Tolles Home Trustees

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to re-appoint Vicki L. Landry to Seat 5 of the Frances J. Tolles Home Board of Trustees.

Voice vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Batchelder - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

CITIZEN'S FORUM

Mayor Girard opened the Citizen's Forum, and stated all who participate are allotted five minutes to speak on non-agenda items.

Gary Dickerman, Ward 3, noted the Conservation Commission is sponsoring a program by Ben Kilham at the Senior Center, next Tuesday, September 20th at 7pm. Mr. Dickerman noted this program is very informative.

Rebecca Mackenzie, Ward 2, wanted to bring attention the Override Day tomorrow at the State House. There will be a HB1454 rally outside the State House, and asked those who come to bring homemade signs stating "protect our water", and suggests wearing blue clothing.

Mr. Nelson, Commended the Department of Public Works for the work that was done on East Green Mountain Road. Mr. Nelson also thanked Council for acting like professionals while appointing Mr. Batchelder.

Robin Hood, Ward 1, shared her concerns with handicap accessibility. Mr. Bohenko added the city is looking at cost estimates to bring to Council, but the first step is to have an engineer make sure what is needed to bring the accessibility up to code. Ms. Hood also asked for an update relative to Fidium Fiber. Mayor Girard stated a large majority of Claremont residents would have sign on to have Fidium Fiber interested in coming to Claremont.

Mike Demars, Shared concern for the deficit of the community center. Mr. Demars stated he thinks this facility is not being handled correctly.

Norm Blouin, Ward 3, thanked the Department of Public Works and Dean Hooper for the work him and his men have done. Mr. Blouin also shared concern for the resume of the new City Manager.

Walt Stapleton, Ward 3, stated concern and the uncertainty of gas and diesel rates. There will be a Bill going to the State House tomorrow for electric and home heating assistance.

OLD BUSINESS

Ordinance 597 Abolishing Chapter 2, Article 11, Division 8 – Board of Assessors and revising Chapter 2, Article III, Division 8, Section 2-262.

CITY OF CLAREMONT - IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #597

Rescinding the City's Board of Assessors and Revising the Roles and Obligations of the City's Assessing Division

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 48:12, Division 8 – Board of Assessors, of Chapter 2, Article II of the Claremont City Code is hereby abolished, rescinded and removed in its entirety from the City’s Code. Furthermore, Chapter 2, Article III, Division 8 – Department of Planning and Development, Section 2-262 is hereby amended to revise the powers and duties of the City’s Assessing Division, as follows:

Section 1. Chapter 2, Article II, Division 8 – Board of Assessors

The entirety of Division 8 of Article II of Chapter 2 as titled “Board of Assessors” shall be stricken and removed from the Claremont City Code. As a result, the Claremont Board of Assessors shall no longer possess any ability or right to conduct any further official duties or activities upon the adoption of this Ordinance. The Claremont Board of Assessors shall hereby be abolished upon the effective date of this legislation.

Section 2. Chapter 2, Article III, Division 8 – Department of Planning and Development. Revise Section 2-262, Assessing division, to read as follows:

The assessing division shall consist of a state D.R.A. certified appraiser, and other personnel as may be approved by the city manager. The city assessor and staff shall perform the following functions:

- (1) The city assessor shall act in all manners as the assessing official and carry out all the duties relative to appraisal of property for taxation as the assessing official as provided by law.
- (2) Prepare all assessments and tax rolls and notices as required by law and submit assessments for use in the billing of taxes .
- (3) Review all property transfers and maintain all property records pertaining to the assessing function.
- (4) Review and approve or deny all abatement requests, applications for exemptions, credits and deferrals.
- (5) Defend the abatement decisions appealed to the NH board of tax and land appeals or superior court, including resolving same through negotiations.
- (6) Prepare and submit regular reports to the Mayor and City Council detailing abatement requests made, abatements granted or denied, abatements appealed to the NH board of tax and land appeals or the superior court and the outcome or disposition of any appeal.
- (7) The assessing division staff shall support the duties of the city assessor.
- (8) Perform other functions as required.

Section 3. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 2, Article III, Division 8, Section 2-262 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 4. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 5. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

Mr. Hamilton the Assessing Consultant explained the Ordinance.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to pass Ordinance 597 to a second reading on October 12th, 2022 Council meeting.

Councilor O’Hearne read Ordinance 597 into record.

Mayor Girard opened a public hearing, no one spoke, Mayor Girard closed the public hearing.

Roll call

Contois - yes

O’Hearne - yes

Stone - no

Matteau -yes

Koloski - yes

Limoges – no

Batchelder- yes

Mooshian - yes

Girard - yes

Motion carried 7-2

NEW BUSINESS

Ordinance 598 Merit Plan

CITY OF CLAREMONT - IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #598

Amending the Non-Union Employee Classification Plan and Non-Union Employee Pay Schedule

THE CITY OF CLAREMONT ORDAINS:

Pursuant to Article III, Sections 24, 25 and Article IV, Section 52, of the Claremont City Charter; the Non-Union Employee Classification Plan (Attachment B) as well as the Non-Union Employee Pay Schedule (Attachment C) to the Non-Union Job Classification Plan are hereby amended and readopted as follows:

Section 1. Compensation and Job Classification

The compensation of every non-union employee of the city shall be determined by the classification of the job in which such person is employed and in accordance with Attachments B and C to the City's Merit System (which are on file in the city manager's office). Upon adoption of this Ordinance, the new versions of both Attachment B and C, which are exhibits to this Ordinance, shall be implemented with the proposed changes contained therein.

Section 2. Compensation for nonunion/nonexempt employees

With the exception of employees in grades 1 through 4, which are specified solely by an hourly wage rate, rates of compensation of each non-union, non-exempt city employee may be specified by hourly, weekly or annualized salary scales as set forth in Attachment C (on file in the city manager's office). An individual may be hired at or promoted to any salary within his/her job classification and designated Grade if, in the opinion of the department head with the concurrence of the city manager, such individual possesses such experience, skills, or knowledge that meet or exceed the requirements of the position.

Section 3. Salary scales for nonunion/exempt employees

The rates of compensation to be paid to each non-union/exempt city employee shall be at the annualized pay scales as set forth in Attachment C (on file in the city manager's office), with the exception of the salary of the city manager, which is discretionary with the city council. An individual may be hired at or promoted to any salary within his/her job classification and designated Grade if, in the opinion of the department head with the concurrence of the city manager, such individual possesses such experience, skills, or knowledge that meet or exceed the requirements of the position.

Section 4. Prior Enactments Superseded

The pay schedules as adopted by action of the City Council concerning those set forth in Attachment C, prior to adoption of this Ordinance, and all prior amendments thereto, are hereby repealed as they pertain to same.

Section 5. Validity

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 6. Effective Date

This Ordinance shall take effect and be enforced as of January 1, 2023.

Councilor Koloski asked to recuse himself from this item because of personal interest as a Call Firefighter. Council agreed.

Ms. Lauzon gave a detailed explanation on the importance of this amendment and the impacts inflation has had. Ms. Lauzon noted a major challenge for the City is retaining and recruiting employees. Ms. Lauzon stated turnover, productivity, and loss of historical knowledge, has been a burden to an already thin staff. Ms. Lauzon also stated it was imperative for the Council to understand this does not increase salaries by 8%.

A motion was made by Councilor Mooshian and seconded by Councilor Stone to pass Ordinance 598 to a second reading at the October 12, 2022 City Council meeting.

Councilor Mooshian read Ordinance 597 into the record.

Roll call:

Contois - yes

O'Hearne - no

Stone - yes

Matteau - yes

Koloski - Abstain

Limoges - yes

Batchelder - yes

Mooshian - yes

Girard - yes

Motion carried 7-1, 1 abstained (Councilor Koloski)

Increase Funding Request

TO: City Manager, John Bohenko

Mayor, Dale Girard
City Council

FROM: Gary Dickerman, Chair
Claremont Conservation Commission

RE: Request for Increased Funding

The Claremont Conservation Commission was established by City Council ordinance no. 163 on September 8, 1976.

The Commission's defined duties included:

- preparation of a program for conservation and open space utilization for the city which is based upon the research and evaluation of the natural resources within the city;
- creation and continued maintenance of a conservation and open space plan for the city which may include an inventory of the city's natural resources and areas of unique natural value or ecological importance within the city;
- making recommendations relative to the proper utilization and development of open space and related natural resources of the city;
- advising city council and others regarding the manner in which these plans and programs may be carried out.

At the time, no provisions were made to provide the Commission with a regular source of revenue that would enable it to carry out its defined duties, although it did state that the City may make appropriations to the conservation fund. This changed in 1993, however, when the Council agreed to allocate to the Commission up to \$5,000 each year from what has become known as the "Land Use Change Tax" (LUCT). Thirty years later, this funding mechanism and the allocation amount has remained unchanged. What has changed is the cost of carrying out the Commission's prescribed duties.

For example:

- The Commission is statutorily directed to prepare a conservation and open space plan for the city based on the results of a natural resources inventory. The Claremont Natural Resources Inventory, completed in 2013, cost the Commission \$18,200.
- Since the NRI cost nearly \$20,000, it is reasonable to expect the conservation plan will cost as much if not more. The Plan is intended to guide the Commission in its mission to protect the City's most valuable resources and to provide guidance in the best use of those assets – it's number one directive.
- In addition, the Natural Resources chapter of the 2017 Master Plan directs the Commission to develop further plans and to obtain easements and fee simple parcels with which to further protect the City's water resources. A very rough estimate of the appraised value of undeveloped land in Claremont is \$2,752 per acre. The purchase of a meaningful-sized parcel would clearly exceed the Commission's annual allocation.

- When the Commission had oversight of the Rail Trail, it spent \$1,618 to remove several trees next to the Trail that were deemed hazardous.
- The Commission was also expected to fund a survey of a portion of the trail to determine the degree of encroachment at a cost in excess of \$20,000. (The Commission respectfully declined.)
- Recently the City Project Manager approached the Commission for funds for a resource assessment of city-owned lands in the Whitewater watershed at a cost of \$20,000. (The assessed lands are part of a wetland mitigation proposal associated with the North and Main Street project and if accepted, will save the City \$300,000.) The Commission agreed to provide \$7,000 toward the cost.
- The Commission has spent \$5,600 on expenses associated with the Stevens Brook Conservation Easement, including completing the boundary survey that should have been completed by the developer, but which was not, marking the boundaries of the easement, purchasing and posting prohibited activity signs, installing game cameras and ultimately a gate to prevent repeated 4-wheeled activity within the easement.
- An additional \$1,000 was spent in surveying the easement across the back of the Haugsrud property (parcel 83-2, 263 North Street) to provide permanent access to the easement by the public. Additional funds (amount as yet unknown) will be needed to complete the permanent access and parking area off of North Street.
- The Commission plans to develop a trail through the easement for educational purposes at an estimated cost of \$7,250 (2020 estimate).
- The Commission is collaborating with Director Merrill, the Parks and Recreation Commission and local user groups to develop a management plan for 5 City-owned parcels in the Cat Hole Ecologically Significant Area. A critical step in developing that plan is a detailed assessment of the natural resources on these parcels. The estimated cost of that assessment is between \$14,000 and \$21,000.
- The Commission is charged with the oversight of a second conservation easement at the base of the capped landfill below the current transfer station (parcel 149-1). Boundaries of that easement were marked at the Commission's expense.
- \$5,000 in 1993 is equivalent to approximately \$10,252 in 2022 dollars.

The Commission has received \$20,620 since 2012. This averages out to \$2,291 per year. Based on the examples given above, we hope the Council can see that this amount does not adequately cover the expenses the Commission must incur.

It is our understanding that any LUCT funds received by the City beyond the \$5,000 are used to help reduce the tax burden on City residents. It is understandable that the Council would be reluctant to give up any funding used for that purpose. However, based on our calculations – which have been confirmed by Finance Director Lisa Richmond - we can demonstrate that the diverted funds would have only a very minor effect on the taxpayer. Please consider:

1. In the past 9 years, there has been \$57,722.50 surplus LUCT (the amount left after the annual allotment to the Conservation Commission.) This represents an average of \$6,413.61/year.
2. The tax rate based on the FY 2023 approved budget is \$15.7795/\$1,000.
3. If we add the average annual surplus to the amount to be raised by taxes for FY 2023, the revised tax rate becomes \$15.7880/\$1,000 for a difference of \$0.0085/\$1,000.
4. This means that for a \$100,000 property, the owner would pay \$0.85 more per year. For a \$200,000 property, the owner would pay \$1.70 more per year.

The Commission hereby respectfully requests that the full amount of LUCT be dedicated to the Conservation Commission to aid in carrying out its statutorily-directed mission.

Gary Dickerman, Ward 3, Chair of Conservation Commission, explained the request of the Conservation Commission. Mr., Bohenko suggested appropriating the money, and then it would be a Policy decision. Mayor Girard regarded this evening was more for informational purposes.

Sullivan Smoke Stack

To: City Manager; Mayor & City Council
From: Nancy Merrill
Date: 8/31/22
Re: Sullivan Machine structures

An inspection report was completed by Structural Co. this past spring on the Sullivan smokestack. It was reported that cables attached to the lightening rod had been severed at about 25' above grade eliminating grounding and lightening protection, and the damage at the top of the tower was likely caused by a lightning strike. The full report of existing conditions and estimates for repairs is attached.

Over the summer UConn TAB had a team reviewing existing brownfield conditions, activity use restrictions, flood plain and overhead wires in the area of the smokestack and pump house. The concepts that they provided for reuse of the city land on the north side of the Sugar River included some with the structures and some without. They are reviewing the input from the members of the public received at the meeting on August 29th and we will provide you with that information and their final report when it is complete.

It is anticipated that planning work will continue under the Recreation Economy & Rural Communities technical assistance grant for the next six months. NH DES has also indicated that they will be providing engineering services to assist Claremont as it discusses future uses on these lands with regard to any brownfield constraints.

Ms. Merrill shared concern for safety. Ms. Merrill stated local citizens have indicated taking down the Smokestack, with the cost for the City being the rental of equipment.

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to give the City Manager the authority to seek out costs and negotiations for the demolition of the Sullivan stack and pump house up to \$20,000.

Roll call:

Contois - no

O'Hearne - no

Stone - yes

Matteau - yes

Koloski - no

Limoges - yes

Batchelder - yes

Mooshian - no

Girard - yes

Motion carried 5-4

Southwest Community Services bus shelter

Memorandum

To: City Manager; Mayor & City Council

From: Nancy Merrill

Date: 8/31/22

Re: Southwestern Community Services Bus Shelter

SWCS has provided bus service from the lower North Street parking lot to Lebanon on Rt 120 this past year. They would like to build a covered bus shelter in a location that would have minimal impact on the use of the parking lot. We have reviewed existing leases and locations of city parking in the North Street lot and have identified a location shown on the attached map.

SWCS is scheduled to be heard by the Historic District Commission on September 22nd, and is hoping to have a shelter similar to that which was built for the Amtrak station. Keith Thibault from SWCS will be at the City Council meeting on the 14th to answer any questions you might have about their proposal. We recommend that the City Council authorize a license to SWCS for placement of the bus shelter.

Motion to Authorize License Agreement for Property at the North Street Parking Lot, Map 107, Lot 31

The Claremont City Council hereby authorizes the City Manager or his designees to negotiate and enter into a multi-year license agreement with Southwestern Community Services to utilize a portion of the lower North Street Parking Lot at Map 107, Lot 31, for purposes of placing a bus shelter, to be laid out as described in the attached July 8, 2022 sketch plan, subject to approval by the Historic District Commission. This license shall be personal to Southwestern Community Services.

A motion was made by Councilor Contois and seconded by Assistant Mayor Matteau to authorize the City Manager to negotiate and enter into a multi-year license agreement with Southwestern Community Services.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Batchelder - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

COMMITTEE REPORTS

Assistant Mayor Matteau noted the Planning Board approved two minor subdivisions, and a solar ray discussion will be presented at the next meeting.

Councilor Stone noted the Policy committee will be held on the 20th relative to mobile food units.

Councilor Contois mentioned the HDC will be discussing the demolition of four properties two of which are not historic buildings, the other two are being processed.

Mayor Girard noted on October 7th there will be a clean-up day, and the Ink Factory is working with the city.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Stone noted 22 Pleasant Street needs a health inspector.

Councilor Koloski asked for a tax deed property update, and wants to see a business plan for the Community Center that is more self-sufficient.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:54 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to adjourn.

Voice vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Batchelder - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council